

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sara Griffin	Team: Squad #10	CCRB Case #: 201609069	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Sunday, 10/30/2016 9:40 PM	Location of Incident: 107th Precinct stationhouse	18 Mo. SOL 4/30/2018	Precinct: 107		
Date/Time CV Reported Sun, 10/30/2016 11:04 PM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Sun, 10/30/2016 9:45 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Eric Kirschenheiter	18550	952937	107 PCT
2. POM Ramon Portillo	04973	949503	107 DET

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Julius Leung	02810	937827	107 PCT
2. POM Keith Jackson	06805	948066	107 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Ramon Portillo	Discourtesy: Police Officer Ramon Portillo spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Ramon Portillo	Abuse: Police Officer Ramon Portillo refused to provide his shield number to § 87(2)(b)	B . Unsubstantiated
C . POM Eric Kirschenheiter	Off. Language: Police Officer Eric Kirschenheiter made remarks to § 87(2)(b) based upon race.	C . Unsubstantiated

Case Summary

On October 30, 2016, § 87(2)(b) filed this complaint at the 107th Precinct stationhouse, the complaint was faxed to IAB generating IAB log #2016-38731, which was received by the CCRB on November 7, 2016. On October 30, 2016, § 87(2)(b) also filed this complaint with the CCRB via telephone. On October 30, 2016, § 87(2)(b) received a phone call from Police Officer Ramon Portillo of the 107th Precinct Detective Squad who requested § 87(2)(b) go to the 107th Precinct stationhouse to answer questions regarding a criminal complaint she had filed a week prior. Shortly after the phone call, § 87(2)(b) arrived at the 107th Precinct stationhouse and spoke with PO Portillo regarding her complaint. § 87(2)(b) did not like the nature of the questions PO Portillo asked her and asked to speak to another officer or PO Portillo's supervisor. When unable to speak with someone else, § 87(2)(b) began to curse at PO Portillo. At this time, PO Portillo allegedly told § 87(2)(b) "You know what, you deserve to get assaulted. That's why you got assaulted." (**Allegation A**) § 87(2)(b) exited the room and proceeded to walk downstairs to the 107th Precinct stationhouse lobby and PO Portillo followed behind her and allegedly said, "You know what they should have raped you as well. They should have assaulted you as well." (**Allegation A**) § 87(2)(b) asked PO Portillo for his shield number which he allegedly refused to provide. (**Allegation B**) Once downstairs in the 107th Precinct stationhouse lobby, § 87(2)(b) again asked PO Portillo for his shield number and PO Portillo allegedly refused again to provide the information. (**Allegation B**) § 87(2)(b) approached the stationhouse desk where Sergeant Julius Leung, Police Officer Eric Kirschenheiter, and Police Officer Keith Jackson of the 107th Precinct were sitting. At this time, PO Portillo returned upstairs to the Detective Squad. § 87(2)(b) requested Sgt. Leung, PO Kirschenheiter, and PO Jackson take her complaint against PO Portillo. PO Kirschenheiter allegedly told § 87(2)(b) that "Blues Lives Matter" to which § 87(2)(b) replied, "Black Lives Matter". PO Kirschenheiter allegedly responded, "Black Lives Never Matter". (**Allegation C**) After completing her complaint against PO Portillo, Sgt. Leung asked § 87(2)(b) to leave the stationhouse. Sgt. Leung provided a copy of the complaint to § 87(2)(b) § 87(2)(b) left the stationhouse.

There is no video footage of the incident.

§ 87(2)(b) was not arrested or issued a summons.

Mediation, Civil and Criminal Histories

- § 87(2)(b) refused mediation § 87(2)(b).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- As of December 8, 2016, an inquiry into the Office of the New York City Comptroller revealed that no notice of claim was filed by § 87(2)(b)

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s second CCRB complaint, § 87(2)(b). (Board Review 2)
- Police Officer Eric Kirschenheiter has been a member of service for 4 years and has 1 prior CCRB complaint, 201303378, filed against him, involving 1 allegation. CCRB case 201303378 was closed as Complainant Uncooperative. PO Kirschenheiter currently has an open CCRB case, 201609212, which involves 3 allegations. § 87(2)(g)
- Police Officer Ramon Portillo has been a member of service for 6 years and has 2 prior CCRB complaints filed against him, involving 5 allegations. In CCRB case 201105951, an allegation of discourteous language was substantiated against PO Portillo. Command Discipline was recommended as a penalty but no disciplinary action was taken as the Department declined or was unable to prosecute. (Board Review 4)

Officer Identification

In § 87(2)(b)'s CCRB phone statement and in-person interview, she stated that the officer who called her on the phone and requested she come down to the stationhouse verbally identified himself as "Detective Pertolli." In the complaint filed at the 107th Precinct stationhouse, § 87(2)(b) identified the officer who spoke discourteously and refused to provide his shield number to her as "Detective Pertolli". However, the investigation identified Police Officer Ramon Portillo of the 107th Detective Squad as the officer who interacted with § 87(2)(b). In addition, Police Officer Portillo acknowledged in his in-person interview that he interacted with § 87(2)(b) inside the 107th Precinct stationhouse. § 87(2)(g)

§ 87(2)(b) wrote down the badge numbers of the three officers who were present in the lobby of the stationhouse on her CCRB complaint. The badge numbers were 18850, 1605, and 2810. The 2810 badge number corresponds to Sgt. Julius Leung and 18850, corresponds to PO Eric Kirschenheiter of the 107th Precinct. Sgt. Leung's name and signature is found on § 87(2)(b)'s CCRB complaint. § 87(2)(b) identified the officer who used offensive language towards her as "18850" or "PO K." According to the 107th Precinct roll call on October 30, 2016, Sgt. Leung was assigned as the Desk Sergeant and PO Kirschenheiter was assigned as Telephone Switchboard Operator. PO Kirschenheiter acknowledged in his in-person interview that he interacted with § 87(2)(b) in the 107th Precinct stationhouse lobby. § 87(2)(g).

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegation A –Discourtesy: Police Officer Ramon Portillo spoke discourteously to § 87(2)(b)

Allegation B- Abuse of Authority: Police Officer Ramon Portillo refused to provide his shield number to § 87(2)(b)

It is undisputed that § 87(2)(b) and PO Portillo interacted inside the 107th Precinct second floor Detective Squad and stationhouse lobby. § 87(2)(g) [REDACTED].

§ 87(2)(b) alleged while in the 107th Precinct stationhouse she requested PO Portillo’s shield number twice. § 87(2)(g) [REDACTED]
[REDACTED]

§ 87(2)(b) testified that once in the interview room on the second floor of the 107th Precinct stationhouse, PO Portillo began to ask questions regarding a criminal complaint she had filed regarding being assaulted. § 87(2)(b) asked PO Portillo if there was a supervisor or another officer she could speak to regarding her case. When PO Portillo informed § 87(2)(b) that she was unable to speak with anyone else, § 87(2)(b) asked PO Portillo “why the fuck are you speaking to me like this?” and exited the interview room. PO Portillo allegedly responded, “You know what, you deserve to get assaulted. That’s why you got assaulted.” PO Portillo followed § 87(2)(b) out of the interview room and allegedly stated, “You know what, they should have raped you as well. They should have assaulted you as well.” § 87(2)(b) stated that while walking down the stairs she asked PO Portillo for his badge number and PO Portillo allegedly replied, “No.” § 87(2)(b) stated that she and PO Portillo were “verbally attacking” each other on the way down to the stationhouse lobby. § 87(2)(b) approached the stationhouse desk where PO Jackson, Sgt. Leung, and PO Kirschenheiter were seated and PO Portillo followed her. § 87(2)(b) requested PO Portillo’s shield number again in front of the three officers and PO Portillo allegedly replied, “No.” PO Portillo returned upstairs at that time. § 87(2)(b) asked Sgt. Leung, PO Jackson, and PO Kirschenheiter to take her complaint against PO Portillo. (Board Review 5)

PO Portillo testified that once in the interview room he began to read § 87(2)(b)’s complaint verbatim in order to verify its accuracy. PO Portillo asked § 87(2)(b) a rudimentary question related to her complaint. § 87(2)(b) became very irate and began to yell at him. § 87(2)(b)

yelled to PO Portillo that he was a, “Fucking asshole, piece of shit, fuck you” and requested to speak to PO Portillo’s supervisor. PO Portillo told § 87(2)(b) his immediate supervisor was not in the office and informed § 87(2)(b) she needed to leave the stationhouse due to her behavior towards him and because she would not speak to him further regarding her complaint. PO Portillo never raised his voice at § 87(2)(b) and kept a calm demeanor during their interaction in the interview room. PO Portillo escorted § 87(2)(b) down the stairs back to the stationhouse lobby, where § 87(2)(b) continued to yell. PO Portillo denied telling § 87(2)(b) “You know what, you deserve to get assaulted. That’s why you got assaulted”. PO Portillo denied telling § 87(2)(b) “You know what, they should have raped you as well. They should have assaulted you as well.” PO Portillo did not recall if § 87(2)(b) asked for his shield number while walking down the stairs. PO Portillo testified that PO Jackson was sitting at the stationhouse desk, but did not know the names of the other officers sitting at the desk. PO Portillo approached Sgt. Leung and asked him to assist § 87(2)(b) as he could no longer help her. PO Portillo then returned back upstairs to the Detective Squad. PO Portillo did not recall if § 87(2)(b) requested his shield number again while down in the lobby. (Board Review 6)

PO Jackson, Sgt. Leung, and PO Kirschenheiter all testified that they were downstairs in the 107th Precinct stationhouse lobby during the interaction between PO Portillo and § 87(2)(b). PO Jackson stated that he could hear § 87(2)(b) yelling as she came down the stairwell but could not hear the context of § 87(2)(b)’s yelling but every other word of hers was “fucking.” PO Jackson heard § 87(2)(b) yelling at PO Portillo to, “go fuck yourself, go fuck a cop dick, motherfucker, you are a piece of shit.” PO Jackson, Sgt. Leung, and PO Kirschenheiter all stated that PO Portillo and § 87(2)(b) were arguing loudly in the lobby of the stationhouse, but did not recall the specifics of their argument. PO Jackson, Sgt. Leung, and PO Kirschenheiter did not hear § 87(2)(b) ask PO Portillo for his shield number at any point. PO Jackson and Sgt. Leung did not remember the specific allegations § 87(2)(b) alleged against PO Portillo while taking her complaint. (Board Review 7, 8, 9)

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation A** and **Allegation B** be closed as **Unsubstantiated**.

Allegation C –Offensive Language: Police Officer Eric Kirschenheiter made remarks to § 87(2)(b) based upon race.

It is undisputed that § 87(2)(b) and PO Kirschenheiter had a conversation in the 107th Precinct Stationhouse lobby regarding the topic of “Black Lives Matter.” § 87(2)(g)

§ 87(2)(b) testified that once she was downstairs in the stationhouse lobby and had completed her complaint paperwork, PO Kirschenheiter stated, “Blue Lives Matter”. § 87(2)(b) replied, “Black lives matter” and PO Kirschenheiter allegedly replied, “Black lives never matter.” § 87(2)(b) replied, “Black lives never matter? No yours don’t. You know what, that is the reason why you cops are always getting into trouble and getting into problems with people because you don’t know how to speak to people.” PO Kirschenheiter asked § 87(2)(b) if she was

threatening him. At that time, Sgt. Leung asked her to leave the stationhouse. § 87(2)(b) was given a copy of her complaint and left the stationhouse. (Board Review 5)

PO Kirschenheiter testified that § 87(2)(b)'s demeanor was rude, very loud, and uncooperative as he and Sgt. Leung attempted to help § 87(2)(b) complete her complaint paperwork. At some point, § 87(2)(b) made the statement, "I know you believe blue lives matter, but I believe black lives matter that's why police officers are getting shot in the head" to him. PO Kirschenheiter did not recall the exact occurrence of the statement or the specific context of the statement § 87(2)(b) made to him. PO Kirschenheiter asked § 87(2)(b) if she was threatening him. PO Kirschenheiter denied that he told § 87(2)(b) "black lives never matter." (Board Review 9)

Sgt. Leung and PO Jackson testified that they were in a back room during the interaction between PO Kirschenheiter and § 87(2)(b). Sgt. Leung heard PO Kirschenheiter and § 87(2)(b) arguing. PO Jackson heard § 87(2)(b) making a comment to PO Kirschenheiter along the lines of she only cares about Black Lives Matter and police officers only care once they are shot in the head and then it's about Blue Lives Matter. Sgt. Leung and PO Jackson both heard PO Kirschenheiter ask § 87(2)(b) if she was threatening him and they proceeded to exit the back room and approach the desk. PO Jackson described § 87(2)(b)'s demeanor as attempting to get a rise out of PO Kirschenheiter. PO Jackson stated that PO Kirschenheiter's tone remained calm while speaking to § 87(2)(b). Sgt. Leung and PO Jackson both did not hear PO Kirschenheiter say "Black lives never matter". Sgt. Leung received a phone call from PO Kirschenheiter later that day who mentioned that the argument between him and § 87(2)(b) was related to the subject of "Black Lives Matter" and § 87(2)(b) making a comment related to police officers getting shot. (Board Review 7 and 8)

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) it is recommended that **Allegation C** be closed as **Unsubstantiated**.

Squad: 10

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date